

		treat the airport noise and vibrations to be a continuing or permanent nuisance].) The Baker plaintiffs brought suit against a neighboring airport authority for noise, smoke, and vibrations from the airport’s continuing operations. (<i>Id.</i> at 868-870.) The trial court found the claim to be time-barred, having concluded the claim for nuisance had accrued when the airport was acquired by a public entity. (See <i>id.</i> at 868.) The appellate court disagreed, finding the continuing airport operations to be “the quintessential continuing nuisance. Although federal law precluding interference in any way with flight patterns and schedules as an element of permanency to an otherwise continuing problem, it does not mandate that the overall nuisance is a permanent one.” (<i>Id.</i> at 873.) The court found particularly compelling that the airport operator had a separate duty to reduce noise. (<i>Id.</i> at 873.) To the extent Defendants argue that the requested injunctive relief to cap and re-route the sewer line confirms the “true nature” of Plaintiffs’ claim as challenging the existence of the sewer line itself, the court does not find this argument compelling. The FAC alleges that repairing the existing sewer line would require “a complete overhaul of the sewer system” that would cause harm to Plaintiffs’ pool, slope, hardscape, and landscaping. (See FAC ¶¶ 33, 37.) These alleged facts support Plaintiffs’ electing to pursue a remedy that does not further interfere with their property. In sum, the demurrer is OVERRULED. Defendants SHALL file and serve an answer to the First Amended Complaint within 10 days. (Cal. Rules of Ct., rule 3.1320(g).) Plaintiffs to give notice.
12	Orange County Sanitation District vs. Jackson	<u>Demurrer (re Second Amended Cross-Complaint)</u> The court SUSTAINS, without leave to amend, Cross-Defendant CITY OF HUNTINGTON BEACH (the City) general demur to the second, third, fourth and fifth causes of